

MEMORANDUM OF UNDERSTANDING

E-Commerce Website & Admin Panel Development

Between TransLink Solution Ltd. and KAYA HERBS BD | Ref: TRL-2026-0312-MOU | Date: 27 March 2026

SERVICE PROVIDER	CLIENT
TransLink Solution Ltd. Software & Digital Commerce Bangladesh info@translinksolution.com www.translinksolution.com	Kaya Herbs BD Herbal & Natural Products Bangladesh Domain: kayaherbsbd.com Authorized Representative: _____

1. PREAMBLE

This Memorandum of Understanding (hereinafter referred to as "MOU" or "Agreement") is entered into on 27th March 2026, between TransLink Solution Ltd., a Bangladesh-based software and digital product company (hereinafter referred to as the "Service Provider"), and KAYA HERBS BD, a herbal and natural products business operating in Bangladesh (hereinafter referred to as the "Client").

This MOU formalizes the mutual understanding and intent of both parties to proceed with the design, development, testing, and deployment of a full-featured E-Commerce Website with Admin Panel for the Client, under the terms and conditions described herein, and in accordance with the original proposal document bearing reference number TRL-2026-0312, dated 23rd March 2026.

By executing this MOU, the Client confirms formal approval of the project scope, timeline, pricing, and all associated terms, thereby authorizing the Service Provider to commence design and development activities immediately.

2. DEFINITIONS

For the purposes of this MOU, the following terms shall carry the meanings assigned below:

"Proposal"	The project proposal document Ref: TRL-2026-0312 dated 13 March 2026, which forms the foundational scope reference for this MOU.
"Platform"	The complete E-Commerce Website (customer-facing) and Admin Panel (back-office) to be designed, developed, and delivered under this MOU.
"Deliverables"	All tangible outputs produced by the Service Provider, including but not limited to UI/UX designs, documentation, and the deployed application. (Clients are not allowed to use, reuse this source code without prior approval of service provider)
"Go-Live"	The formal launch of the Platform in a production environment, accessible to end-users on the domain herbs-bd.com.

"Change Request"	A formally documented and mutually agreed request to modify, add, or remove any element of the agreed scope of work.
"AMC"	Annual Maintenance Contract — a post-launch support and maintenance plan as defined in Section 7 of this MOU.

3. CONFIRMED SCOPE OF WORK

Both parties hereby confirm and agree upon the following scope of work as the complete and exclusive deliverable set for this engagement. Any work not listed below is explicitly excluded from the agreed fixed-fee pricing.

3.1 Module 1 — Customer-Facing E-Commerce Website

- Branded homepage with hero banners, featured products, and promotional sections
- Full product catalogue with category navigation, smart filters, and Elasticsearch-powered search
- Product detail pages with category, related product image gallery, variant/size selector, and customer reviews
- Add-to-Cart and Direct Buy Now purchasing flows
- Product descriptions displayed in Bengali language as per Client requirement
- Discount module showing both original price and offer price simultaneously
- WhatsApp icon with click-to-call/text number on each product detail page
- Shopping cart with saved items and guest checkout support
- Multi-step checkout flow supporting registered accounts and guest users
- **User account portal: order history, wishlist, saved addresses, and profile**(Optional)
- Coupon and discount code redemption at checkout
- Payment: Cash on Delivery (COD) active at launch; online payment gateways visible but inactive
- Post-order confirmation redirect to product page
- Fully mobile-responsive design across all screen sizes and devices

3.2 Module 2 — Admin Panel

- Dashboard with live KPIs — revenue, orders and top-performing products
- Product management: add, edit, delete, bulk import/export
- Order management: view, process, update status, and issue refunds
- Customer management: profiles and full purchase history
- Content management: editable banners and static pages
- Reports and analytics: sales, traffic, and conversion data exports
- Staff accounts with Role-Based Access Control (RBAC)
- Settings panel tax rules, shipping zones, currency, and **payment gateway configuration**

3.3 Exclusions (Not in Scope for Fixed Fee)

- Third-party payment gateway integrations (bKash, Nagad, Rocket, SSLCommerz, ShurjoPay) — available as an add-on at BDT 20,000. API cost is not included here.
- SMS/WhatsApp API integration — pricing subject to provider choice
- Domain registration — BDT 3,500/year (billed separately)
- Hosting fees — BDT 3,000/month (billed separately)
- Any features not explicitly listed in Section 3.1 or 3.2 above

4. TECHNOLOGY STACK & PERFORMANCE COMMITMENTS

The Service Provider shall build the Platform using an industry-standard, maintainable, and scalable technology stack. The Client acknowledges and accepts the following approved technology choices:

Layer	Technology	Purpose
Frontend	React/Blade + TypeScript	Fast, SEO-ready, fully responsive UI
Styling	Tailwind CSS + Bootstrap	Consistent and clean UI components
Backend	Laravel (REST API)	Scalable, modular, and secure application layer
Database	MySQL + Redis	Reliable data storage with fast caching
Search	Elasticsearch	Smart and instant product search
Authentication	JWT + OAuth 2.0, Sanctum	Secure stateless authentication
DevOps	Docker + GitHub Actions CI/CD	Automated testing and deployment pipeline
Hosting	DigitalOcean (or private hosting)	Scalable cloud infrastructure/ VPS

5. PROJECT TIMELINE & DELIVERY MILESTONES

The project shall be executed across six structured phases over a period of twelve (12) weeks from the date of contract signing and receipt of the initial payment instalment. Each phase concludes with a formal client review and sign-off before the next phase commences.

#	Phase	Duration	Timeline	Key Deliverables
01	Discovery & Planning	1 Week	Week 1	Requirements doc, sitemap, wireframes, tech spec
02	UI / UX Design	2 Weeks	Week 2-3	Design system, hi-fi mockups, prototype, sign-off
03	Frontend Development	3 Weeks	Week 4-6	All customer-facing pages, cart, checkout, account
04	Backend & Admin Panel	4 Weeks	Week 7-10	API, database, all admin modules, integrations
05	QA, Testing & UAT	1 Week	Week 11	Functional, performance, security testing, UAT
06	Launch & Handover	1 Week	Week 12	Go-live, staff training, documentation, handover

Both parties agree that project timelines are contingent upon timely Client feedback, content provision, and payment of milestones as scheduled. Any Client-side delay exceeding five (5) business days may result in a proportional extension to the project timeline, to be communicated in writing.

6. INVESTMENT & PAYMENT SCHEDULE

Both parties agree to the following fixed-fee pricing structure. All amounts are in Bangladeshi Taka (BDT). This is a fixed-fee engagement; no hourly billing shall apply. Any work outside the confirmed scope requires a written Change Request approved by both parties prior to commencement and shall be subject to separate pricing.

6.1 Core Development Fee

Deliverable	Hours	Included In
Discovery, Planning & Architecture	40 hrs	Special Package
UI / UX Design & Full Prototype	80 hrs	Special Package
Frontend Development	120 hrs	Special Package
Backend API & Database	120 hrs	Special Package
Admin Panel — All Modules	120 hrs	Special Package
Quality Assurance & Security Testing	40 hrs	Special Package
DevOps, Hosting Setup & Deployment	40 hrs	Special Package
Training & Documentation	40 hrs	Special Package
SUBTOTAL — Special Consideration Package	640 hrs	BDT 30,000

This price covers a special service package only; the control panel is excluded. If you add the control panel, the total cost is approximately 350,000 BDT at the standard rate.

6.2 Additional Costs (As Required)

Item	Basis	Amount (BDT)
Payment & Third-Party Gateway(Only Integration Cost)	One-time	20,000
Domain Registration (kayaherbsbd.com)	Per year	3,500
Hosting	Per month	3,000
SMS / WhatsApp API Integration	As per provider	TBD

Hosting Package:

basic	Standard	Premium
Storage: 1-3 GB SSD	Storage: 3-5 GB SSD	Storage: 10GB
Bandwidth: 10 - 20GB	Bandwidth: Up to 50GB	Bandwidth: Up to 100 GB
Monthly price: 2500	Monthly price: 3000	Monthly price: 5500

6.3 Payment Schedule

The Client agrees to make payments in four milestone-based instalments as follows:

#	Milestone / Trigger	%	Amount (BDT)	Due Date
1	Contract / MOU signed — project commences	40%	12,000	Upon signing
2	UI/UX Design phase approved by Client	20%	6,000	End of Week 3
3	Core development phase complete	30%	8,000	End of Week 10
4	Go-live accepted — final handover complete	10%	4,000	End of Week 12
TOTAL CORE DEVELOPMENT FEE		100%	BDT 30,000	

All payments are non-refundable once the respective milestone phase has commenced. The Service Provider reserves the right to pause work if payment is overdue by more than five (5) business days, without liability for any resulting delay.

7. POST-LAUNCH SUPPORT & MAINTENANCE

Every project includes thirty (30) calendar days of complimentary post-launch support covering bug fixes and minor adjustments at no additional cost. Following this complimentary period, the Client shall select one of the following maintenance plans to ensure the continued operation, security, and optimization of the Platform.

7.1 Monthly Maintenance Plans

Feature	Basic	Standard	Premium
Monthly Retainer (BDT)	7,000	10,000	12,000
Bug Fixes	Included	Included	Included
Critical Response Time	48 hours	12 hours	4 hours
Dev Hours / Month	5 hours	15 hours	30 hours
Monthly Report	—	Yes	Yes
Security Patching	Quarterly	Monthly	Continuous
Hosting Included	Yes	Yes	Yes
Custom Development	—	—	Yes
Dedicated Account Manager	—	—	Yes

Note: Domain costs are excluded from all maintenance plans and are billed separately.

7.2 Client's Selected Plan

Selected Maintenance Plan: ☐ Basic ☐ Standard ☐ Premium ☐ To be decided	Plan Commencement Date: 30 days after Go-Live date (automatically)
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8. TERMS, OBLIGATIONS & CONDITIONS

8.1 Obligations of the Service Provider

- Develop and deliver the Platform strictly in accordance with the confirmed scope defined in Section 3 of this MOU.
- Maintain professional communication and provide project status updates at minimum bi-weekly via WhatsApp group or agreed channel.
- Conduct formal demonstrations at the end of each development sprint and at the conclusion of each project phase.
- Perform thorough function, performance, and security testing prior to UAT and Go-Live.
- Provide 30 days of complimentary post-launch bug-fix warranty.
- Transfer full intellectual property rights (except source code) designs, documentation to the Client upon receipt of final payment.

8.2 Obligations of the Client

- Provide timely feedback, approvals, and content (including product data, images, brand assets, and Bengali copy) as requested by the Service Provider.
- Make all milestone payments on or before the specified due dates.
- Designate an authorized point of contact with decision-making authority for approvals.
- Participate in User Acceptance Testing (UAT) during Week 11 and provide sign-off within three (3) business days of UAT delivery.
- Not engage any third party to modify or interfere with the Platform during active development without prior written consent from the Service Provider.
- Strictly prohibited to use, reuse, sell outside this project using this property

8.3 Intellectual Property

Upon receipt of full and final payment, except source code all designs and documentation produced under this MOU shall be exclusively owned by the Client (KAYA HERBS BD). Prior to final payment, all work remains the property of the Service Provider. The Recipient agrees that under this Memorandum of Understanding (MOU) shall be used solely for the purposes defined herein. The Recipient shall not, without prior written consent of the Disclosing Party, copy, reproduce, reuse, distribute, sell, license, or otherwise transfer any property, in whole or in part, to any third party or for any purpose outside the scope of this agreement.

8.4 Confidentiality

Both parties agree to hold all project information, technical specifications, business data, pricing, and any proprietary information shared during this project in strict confidence. This obligation survives the termination or completion of this MOU for a period of two (2) years.

8.5 Change Request Process

Any request to modify, expand, or reduce the agreed scope of work shall be submitted in writing as a formal Change Request. No scope changes shall be implemented without written approval from both parties. Approved changes will be subject to separate pricing and may affect the project timeline.

8.6 Warranty

The Service Provider warrants that the Platform, at the time of Go-Live handover, will function materially in accordance with the agreed specifications. A thirty (30) calendar day bug-fix warranty applies post-launch, during which the Service Provider will remedy any defects at no additional charge. This warranty does not cover issues arising from Client-initiated changes, third-party failures, or use of the Platform beyond its intended purpose.

8.7 Limitation of Liability

The total liability of either party under this MOU shall not exceed the total fees paid to the Service Provider under this agreement. Neither party shall be liable for indirect, consequential, or incidental damage arising from the performance or non-performance of obligations under this MOU.

8.8 Governing Law & Dispute Resolution

This MOU is governed by and shall be construed in accordance with the laws of the People's Republic of Bangladesh. Any dispute arising out of or in connection with this MOU shall first be attempted to be resolved amicably by both parties within fifteen (15) days of written notice. If unresolved, disputes shall be referred to the appropriate courts of jurisdiction in Chattogram, Bangladesh.

9. PROJECT COMMENCEMENT CONFIRMATION

By executing this MOU, the Client formally:

- a. Confirms full review, understanding, and acceptance of the Proposal document Ref: TRL-2026-0312 dated 23 March 2026.
- b. Approves the scope of work, technology stack, project timeline, and all pricing as defined herein.
- c. Authorizes TransLink Solution Ltd. to commence the Discovery & Planning phase and UI/UX Design phase with immediate effect upon receipt of the initial payment instalment (BDT 12,000).
- d. Acknowledges that this MOU supersedes all prior verbal agreements, discussions, or informal communications regarding this project.

10. SIGNATURES

IN WITNESS WHEREOF, the duly authorized representatives of both parties have executed this Memorandum of Understanding on the date written below.

FOR SERVICE PROVIDER

TransLink Solution Ltd.

Signature

Muhammed Imran

Name: Muhammed Imran — Head of Projects

Date

Company Seal / Stamp (if applicable)

FOR CLIENT

KAYA HERBS BD

Signature

Name & Title

Date

Company Seal / Stamp (if applicable)

ANNEXURE

This MOU is read together with the following document, which forms an integral part of this Agreement:

- Project Proposal Ref: TRL-2026-0312, dated 13 March 2026, prepared by TransLink Solution Ltd. for KAYA HERBS BD.